

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JULY 17, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**AMMAAR MOTORS, INC. vs. ZULFIGAR ALI SHIRAZE; ET AL.
Case No. CU23-03284**

Motion for Good Faith Settlement

TENTATIVE RULING

THE PARTIES ARE TO APPEAR to address continuing the motion to a date after the two motions to intervene, currently scheduled for September 29, 2026, are heard.

As explained in *Singer Co. v. Superior Court* (1986) 179 Cal.App.3d 875:

“Failure to bring into the good faith settlement determination any likely defendant as a necessary party will have the usual effect -- the judgment cannot bind the absent party. (See [Kraus v. Willow Park Public Golf Course](#) (1977) 73 Cal.App.3d 354, 368 [140 Cal.Rptr. 744].)” *Id.* at 892.

**JANE DOE vs. DAVID EVANS WEBB; ET AL.
Case No. CU23-04589**

Motion by Defendant DAVID EVANS WEBB to Dismiss Entire Action for Delay in Prosecution

TENTATIVE RULING

Defendant's motion to dismiss is granted. The matter is dismissed without prejudice pursuant to CCP Section 583.420 and Rule of Court 3.1342(e). The Court finds that Plaintiff has failed to diligently prosecute the case.

ALEC NEAL; ET AL. vs. FORD MOTOR COMPANY; ET AL.
Case No. CU24-07267

FORD's Motion for Summary Adjudication re: Fraudulent Inducement

TENTATIVE RULING

Defendant FORD MOTOR COMPANY ("FORD") moves for summary adjudication in its favor of the cause of action for fraudulent inducement within Plaintiffs ALEC NEAL, KRISTY LEE NEAL, and TODD GLENN NEAL's complaint. Summarized as relevant, Plaintiffs allege that Defendant failed to disclose material information about defects in the engines in its 2017 Ford Focus vehicles; Plaintiffs were therefore misled by omission into purchasing a 2017 Ford Focus (the "Vehicle") with a defective engine.

The court has not received opposition to the motion.

Legal Standard. A defendant may move for summary adjudication as to one or more causes of action within an action if the defendant contends that the cause of action has no merit and the motion will completely dispose of the cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit when one or more of its elements cannot be established or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (o).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c, subd. (f)(2).) A summary adjudication motion is therefore properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor on the relevant cause of action or issue and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary adjudication, provided they contain admissible evidence. (Code Civ. Proc., § 437c, subds. (b)(1), (d), (f)(2).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.)